

**2026-2031 Janitorial Project, Mio Ranger District, Huron-Manistee N.F.
12444526Q0032**

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation. Quotations are being requested and a separate written solicitation will not be issued.

Solicitation number 12444526Q0032 is issued as a Request for Quotation (RFQ) for Janitorial Services on the Mio Ranger District of the Huron-Manistee National Forest.

This acquisition is set-aside for small business concerns. The applicable North American Industry Classification Standard Code is [561720](#). The small business size standard is \$22.0. This acquisition is a Total Small Business Set-Aside. All responsible sources may submit a quotation which will be considered by the agency.

Statement of Requirement

The contractor will provide all labor, necessary equipment and supplies required to complete the janitorial services at the Mio Ranger District Office located at 107 McKinley Road, Mio, MI 48647 along with ***all consumables***. There is one additional building near this property that will require annual service. The period of performance will start on September 1, 2026. Daily, weekly, semiannual, and annual tasks are outlined below in the Statement of Work (SOW) [see attachment].

Building Descriptions:

Office building

This building is two levels with an average of 10,000 sq. feet per level. This building contains: six multi-stall bathrooms, two private offices, seven enclosed rooms that contain multiple workstations, conference rooms, gift shop, and a breakroom. There are tile, laminate, and carpet floors throughout this building. This building will require janitorial service three times per week as outlined below.

Additional Building 1 (West Barn)

This building is a warehouse that consists of one level and is 5000sq. ft. This building contains a gym, two multi-stall bathrooms with showers, and a lab. There are tile, laminate, and carpet floors throughout the barn. This building will require once a week janitorial services as outlined below.

Contractor Responsibilities The Contractor shall:

Be responsible for the management and operational decisions to meet the quality standards required under this contract.

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Contractor shall submit a Custodial Work Schedule Plan within 15 days of contract award and must be approved by the COR. This schedule will show dates of all tasks and subtasks listed in Description, Performance Measurement & Schedule detailing, daily, weekly, monthly, semi-annual, and annual work that will be performed.

Implement an effective Quality Control Plan (QCP).

Inform the COR of schedule changes at least one week in advance.

Establish a Project Leader/Manager who is empowered to act with complete authority for the Contractor and who is responsible for overall management and coordination of work under this contract.

The Contractor shall furnish to the COR the Project Leader/Manager's phone and e-mail contact information with the Custodial Work Schedule Plan.

The Contractor shall prohibit employees from opening desk drawers, cabinets or using telephones or office equipment provided for Official Government Use.

The Contractor shall prohibit employees from having children, other unapproved individuals, or pets in the building during the performance of duties.

The Contractor or Contractor's designated Project Leader/Manager shall always be available when the contract work is in progress to receive notices, reports, or requests from the COR.

Cleaning Schedule

Daily & Weekly Services: Daily & Weekly Services to be completed three times per week, after 4:30 p.m. Monday, Wednesday, and Friday. West Barn is to be cleaned once weekly on a day determined by the COR. Any deviation in schedule needs to be requested in writing at least 24 hours in advance of cleaning and authorized by the COR.

Semi-Annual, Annual and As Needed Services: All Semi-Annual, Annual and As Needed Services cleaning shall be performed in February, May, August, and November. Any deviation from these scheduled times can be discussed and agreed to by the Contractor and the Contracting Officer's Representative (COR). These should be included in the Custodial Work Schedule Plan.

Holidays: Holidays observed by the Government employees are as follows: New Year's Day, Martin Luther King Day, Presidents' Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day and Christmas Day. If a holiday falls on a Wednesday, the daily cleaning activity may be performed the day before or after if work is not completed on the holiday.

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The janitorial services shall be performed in such a manner that there will be minimal interruptions to or interference with the normal operation of Government business on the premises.

Please see the attached Statement of Work for more details concerning this requirement as the above summary is not all inclusive.

Attachments:

**Attachment A: Experience Questionnaire
Attachment B: RFQ 12444526Q0032
Attachment C: Schedule of Items
Attachment D: Statement of Work (SOW)
Attachment E: Wage Determination**

Schedule of Items

Huron-Manistee National Forests - Mio Ranger District Office Janitorial Services Contract

OFFEROR NAME: _____
OFFEROR UEI NUMBER: _____
OFFEROR EMAIL ADDRESS: _____
OFFEROR POINT OF CONTACT: _____

SCHEDULE OF ITEMS #	DESCRIPTION	QT Y	PAY UNIT	UNIT PRICE	TOTAL (ANNUAL) PRICE
0001	Janitorial Services - Base Year POP September 1, 2026 - August 31, 2027	12	MONTH	\$	\$
0002	Janitorial Services - Option Year 1 POP: September 1, 2027 - August 31, 2028	12	MONTH	\$	\$
0003	Janitorial Services - Option Year 2 POP: September 1, 2028 - August 31, 2029	12	MONTH	\$	\$
0004	Janitorial Services - Option Year 3 POP: September 1, 2029 - August 31, 2030	12	MONTH	\$	\$
0005	Janitorial Services - Option Year 4 POP: September 1, 2030 - August 31, 2031	12	MONTH	\$	\$
TOTAL BASE PLUS ALL OPTIONS:			\$		

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***Pricing must be included for the base year and each option year. A total base plus all options pricing is required.**

Period(s) of Performance:

Base Year: September 1, 2026 - August 31, 2027
Option Year 1: September 1, 2027 - August 31, 2028
Option Year 2: September 1, 2028 - August 31, 2029
Option Year 3: September 1, 2029 - August 31, 2030
Option Year 4: September 1, 2030 - August 31, 2031

Technical Data

BIOBASED PRODUCTS

The Contractor must comply with Section 9002 of the Farm Security and Rural Investment Act of 2002 (FSRIA), Executive Order (EO) 13423, “*Strengthening Federal Environmental, Energy, and Transportation Management*,” and the Federal Acquisition Regulation to provide biobased products. The Contractor shall utilize products and materials made from biobased materials (e.g. biobased cleaners, biobased degreasers, floor wax, etc.) to the maximum extent possible without jeopardizing the intended end use or detracting from the overall quality delivered to the end user. For the biobased content products evaluation, all non-chemical products proposed for use under this contract must conform to the Department of Agriculture (USDA) Designated Biobased Products List (DBPL) whenever practicable.

Contractors should provide data for their biobased solvents and cleaners to document biobased content, and source of biobased material (i.e. particular crop or livestock). Any material which the COR suspects does not meet Federal specifications or standards shall be tested at the Contractor's expense by an independent testing laboratory qualified to perform such tests as are required. A copy of the laboratory report giving the results of the test and a sample of each product, if requested, shall be submitted to the COR. These products shall meet the requirements established by applicable Federal specifications and standards or be considered unacceptable for use.

Within 15 days of contract award, the Contractor shall submit to the COR a list giving the name of the manufacturer, the brand name, and Material Safety Data Sheets with the intended use of each of the materials the Contractor proposes to use in the performance of the work. Contractor shall not use any materials which the COR determines to be unsuitable for said purpose, or harmful to the surfaces to which it is to be applied. Any material which the COR suspects of not meeting safety standards shall be tested by a recognized testing laboratory at the Contractor's expense.

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The Contractor shall, as part of their Quality Control Plan, develop and maintain a low impact environmental cleaning fluid and housekeeping policy that addresses sustainable cleaning and hard flooring coating systems products and the utilization of concentrated cleaning products. The following is an example list of products that may be used in this contract for custodial services for which biobased products are available. The list is not all inclusive. It is desirable that vendors be able to supply the greatest number of biobased products listed meeting the health and environmental specifications.

All-purpose cleaner	Glass cleaner
Degreaser/cleaner	Neutral cleaner (liquid)
Heavy duty cleaner	Grout sealer
Deodorizer	Stain remover
Carpet shampoo	Stainless steel polish
Floor finish	Air freshener including dispenser
Gum remover	Toilet bowl cleaner
Floor finish restorer	Bathroom cleaner
Disinfectant/sanitizer	White board cleaner
Floor sealer	Brass polish/cleaner
Extraction fluid	Wood floor cleaner
Furniture polish	Chrome polish/cleaner
Floor stripper	Laundry detergent
Liquid hand soap including dispenser	Cream cleaner

Lime and scale remover (tub & tile cleaner)

Biobased products that are designated for preferred procurement under USDA's Bio Preferred program must meet the required minimum biobased content as stated in the USDA Final Rule available at www.biopreferred.gov. The Contractor should provide data for their biobased products such as biobased content. In addition to the biobased products designated by the U.S. Department of Agriculture in the Bio Preferred Program, the Contractor is encouraged to use other biobased products. The Contractor shall comply with the provision at FAR 52.223-1, Biobased Product

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Certification. The Contractor shall comply with the clause at FAR 52.223-2, Affirmative Procurement of Biobased Products under Service and Construction Contracts. **Contract Clauses**

<https://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml>

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)

☐ Alternate I (Nov 2025) of 52.212-4

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.222-50 Combating Trafficking in Persons (Nov 2025)

☐ Alternate I (Nov 2025) of 52.222-50

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)

52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

52.233-3 Protest After Award (Sep 2025)

52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)

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52.240-91 Security Prohibitions and Exclusions (Nov 2025)

☐ Alternate I (Nov 2025) of 52.240-91

52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

☐ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6

☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)

☒ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011

☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)

☐ 52.204-91 Contractor identification (Nov 2025)

☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)

☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)

☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)

☒ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)

☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025) ☐ Alternate I (Mar 2020).

☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)

☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025) ☐ Alternate III (Nov 2025) of 52.219-9.

☐ Alternate IV (Nov 2025) of 52.219-9

☐ 52.219-14 Limitations on Subcontracting (Nov 2025)

☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)

☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)

☒ 52.222-3 Convict Labor (June 2003)

☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025) ☒

52.222-35 Equal Opportunity for Veterans (Nov 2025)

☐ Alternate I (Jul 2014) of 52.222-35

☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)

☐ Alternate I (Jul 2014) of 52.222-36

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- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☐ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014) This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
11150-Janitor	\$16.88 per hour

- ☒ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☒ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- ☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
- ☐ Alternate I (May 2008) of 52.223-9
- ☒ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)

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- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☐ 52.224-3 Privacy Training (Jan 2017)
- ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
- ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
- ☐ Alternate II (Nov 2025) of 52.225-3.
- ☐ Alternate III (Nov 2025) of 52.225-3.
- ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☒ 52.237-3 Continuity of Services (Jan 1991)
- ☐ 52.240-92 Security Requirements (Nov 2025)

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☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025) ☐
52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025) ☐
Alternate I (Apr 2023) of 52.247-64.

☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

52.217-8 Option to Extend Services (Nov 1999)
 30 calendar days prior to contract expiration
52.217-9 Option to Extend the Term of the Contract (Mar 2000)
 (a) 30 Calendar days prior to contract expiration and 60 days
 (c) five years.
52.228-5 Insurance Work on a Government Installation
52.236-13 Accident Prevention

AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec
 2025)
452.228-71 Insurance Coverage
452.204-70 Modification for Contract Closeout.
452.204-71 Personal Identity Verification of Contractor Employees. 452.232-
70 Limitation of Government's Obligation.

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal antidiscrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other

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detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

- (c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.
- (d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.
- (e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.
- (f) The Contractor must include the provisions of this clause in all subcontract solicitations.
- (g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default. (End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

- (1) Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
- (2) Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic

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device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

- (b) **Applicability.** When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract shall govern and supersede any supplier terms in all cases.
- (c) **Authorization Required.** Notwithstanding any other provision, no supplier terms shall be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.
- (d) **Unenforceable Terms.** Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:
 - (1) Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.
 - (2) Requires the Government to indemnify the contractor or any other entity.
 - (3) Restricts the Government's ability to obtain similar supplies or services from another source.
 - (4) Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
 - (5) Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
 - (6) Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
 - (7) Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.

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- (8) Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
- (9) Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.
- (10) Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
- (11) Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
- (12) Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.
- (13) Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.
- (14) Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.
- (15) Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.
- (16) Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
- (17) Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
- (18) Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
- (19) Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.

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- (20) Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.
- (21) Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.
- (e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browsewrap, “I agree” mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.
- (f) End user. The supplier agreement shall bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it shall not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.
- (g) Law and disputes. The supplier agreement is governed by Federal law.
- (h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.
- (i) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.
- (j) Arbitration. Binding arbitration shall not be used unless specifically authorized by agency guidance.
- (k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

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- (l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.
- (m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.
- (n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.
- (o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.
- (p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.
- (q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.
- (r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204-70 Modification for Contract Closeout (Apr 2026)

- (a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The

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contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

- (b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.
- (c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment. (End of Clause)

452.204-71 Personal Identity Verification and Workforce Integrity of Contractor Employees (Apr 2026)

- (a) **Compliance with PIV Requirements.** The contractor must comply with the personal identity verification (PIV) policies and procedures established by the United States Department of Agriculture (USDA) Directives 4620-002 series, Homeland Security Presidential Directive 12, and any implementing guidance issued by the Contracting Officer. The contractor must appoint a representative responsible for PIV compliance and must maintain a current list of employees eligible for a USDA LincPass or otherwise authorized to perform work under this contract.
- (b) **PIV Sponsor Availability.** The PIV Sponsor for this contract is the designated Government point of contact identified in the contract, typically the COR unless otherwise specified. The Government will notify the contractor of any changes. The contractor remains responsible for meeting all PIV obligations regardless of changes in sponsor availability.
- (c) **Contractor Workforce Integrity and Accountability.** The contractor is fully responsible for ensuring that all individuals performing under this contract are properly vetted, eligible for access, authorized to perform the work, and accurately represented. At a minimum, the contractor must implement lawful and effective internal controls to:

Verify the identity, work authorization, and qualifications of all personnel assigned;

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Ensure only the individuals presented to USDA for PIV enrollment or identity verification perform work;

Detect and address indicators of identity fraud, unauthorized substitution, or other workforce integrity risks; and

Ensure continuous oversight of personnel, including remote workers, in accordance with any reporting requirements specified in the Contract.

(d) **Mandatory Removal and Replacement.** If the Government determines that a contractor employee fails to meet eligibility, security, integrity, or performance requirements, the Contracting Officer may direct the contractor to remove the individual from performance. The contractor must:

Remove the employee immediately upon notice;

Provide a qualified replacement at no additional cost to the Government; and

Ensure continuity of operations so as not to impact mission requirements.

Failure to promptly remove or replace employees when directed may result in remedies including withholding payment, termination, or other actions authorized under this contract.

(e) **Impact on Contractor Performance.** Contractor compliance with this clause, including timely removal and replacement of personnel, adherence to PIV requirements, and maintenance of workforce integrity, is a material requirement of this contract. Incidents of identity discrepancies, failure to maintain an eligible workforce, submission of personnel who do not match verified identities, unauthorized substitutions, or failure to comply with Government direction may result in termination and will be documented in the contractor's performance assessment and reflected in the Contractor Performance Assessment Reporting System (CPARS).

(f) **Subcontractor Applicability.** The contractor must include this clause in all subcontracts requiring routine unaccompanied physical access to a Federally controlled facility and/or routine unaccompanied access to a Federally controlled information system. The contractor is accountable for ensuring subcontractor compliance.

(g) **No Government Direction of Hiring Practices.** Nothing in this clause authorizes the Government to direct the contractor's internal hiring processes or require the disclosure of personal information beyond what is authorized by law, regulation, or contract terms. The contractor remains solely responsible for determining lawful methods to meet the requirements of this clause. (End of Clause)

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Award Type

It is anticipated that a firm-fixed price requirements contract consisting of one (1) one-year base period and four (4) one-year option periods shall be awarded as a result of this synopsis/solicitation. The total duration of this contract shall not exceed five (5) years and six (6) months.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

Award Method: Lowest Price, Technically Acceptable

Quotations will be evaluated based on the criteria listed below. Award will be made to the quoter that represents the lowest priced, technically acceptable quotation to the Government based on the following criteria:

Pricing must be received for all years of the Schedule of Items form (Base + each option year).

Factor 1 Technical Approach (Pass/Fail):

The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated

To receive a “pass” the quoter must indicate:

- Ability of the offeror to meet the schedule requirements listed in the Statement of Work (SOW).
- Confirm compliance with all requirements of the SOW

Factor 2: Past Performance (Acceptable/Neutral/Unacceptable)

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

To receive a “pass/be acceptable” the quoter must show the following:

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- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Factor 3 Biobased Use (Pass/Fail) :

To receive a Pass, the quoter must:

- Provide a list of cleaning products they will use.
- The list must show they are using USDA-certified Biobased products (e.g., biobased floor wax, glass cleaner, and soap) as required on page 12 of the SOW

Factor 4 Price:

The offeror shall provide pricing as requested in the Schedule of Items of this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Award will be made to the lowest-priced quoter whose quotation is rated "Acceptable" in all nonprice factors. The Government will evaluate quotations based on the following factors:

- Factor 1: Technical Approach (Pass/Fail)
- Factor 2: Past Performance (Acceptable/Neutral/Unacceptable)
- Factor 3: Biobased Products (Pass/Fail)
- Factor 4: Price

Price Evaluation: The Government will evaluate the Total Evaluated Price, which includes the Base Year, all Option Years, and the 6-month extension authorized by FAR 52.217-8. Evaluation of options does not obligate the Government to exercise them.

For purposes of evaluation, the potential need to exercise the option under FAR 52.217-8 to extend a period of performance for a maximum period of six (6) months beyond any period of performance will be considered the same for all offerors. The Government will consider that if the extension of service clause (FAR 52.217-8) is exercised, it will be on the exact same rates and terms, other than

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length of performance, as the period of performance being extended. For purposes of evaluation only, the Government will use the rates specified in the last option period and multiply the cost by six months to the prices proposed for the base period and all option periods to determine total evaluated price of the contract. The Government will determine whether the price, including the options available under FAR 52.217-8, is fair and reasonable.

Offerors, or the product or service, are not required to meet a qualification requirement to be eligible for award.

PAYMENTS

Invoices for all USDA Forest Service contracts are processed through the Invoice Processing Platform (IPP) system. To submit an invoice under this contract, you will need to be registered in IPP. More information on IPP can be found at <http://www.ipp.gov/>.

For assistance, contact the IPP Help Desk at (866) 973-3131.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/faroverhaul/farpart-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

INSTRUCTIONS TO OFFERORS:

Submission Deadline: Quotes are due no later than **05/20/2026 at 10:00A.M. EST**. All quotes received after this date and time will not be accepted.

Submission Method: All quotes and correspondence must be submitted via email to Michael.Wheelock@usda.gov. It is the quoter's responsibility to confirm receipt.

Quote Requirements: To be considered for award, quoters must submit the following:

Price Schedule: Completed "Schedule of Items" for the base and all option years.

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Experience Questionnaire, or other documents that outline technical capability and past performance.

Biobased Verification: A brief statement or plan confirming the use of USDA-designated biobased products.

Period for Acceptance: Quoters must agree to hold pricing firm for 60 calendar days from the date specified for receipt of quotes.

Questions

Questions shall be submitted via email to Michael.Wheelock@usda.gov and are due no later than May 6, 2025, at 10:00 AM EST. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025) ☐
Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☒ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☒ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain

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Services-Certification (Nov 2025)

- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☒ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☐ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

- 52.217-5 Evaluation of Options (Nov 2025)
- 52.233-2 Service of Protest (Sep 2025)
- 52.237-1 Site Visits (Apr 1984)

AGAR Provisions

- 452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (3) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (4) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal antidiscrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

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- (c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.
- (d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.
- (e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.
- (f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default. (End of Provision)

**NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program**

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.

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3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.